

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 27, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. White and pursuant to support received by Mr. Roybal and Mr. Johnson, item #14 was removed from the Consent Agenda. Upon request by Dr. Aldrich and pursuant to support received by Mr. Johnson and Mr. Cook, item #16 was removed from the Consent Agenda. Upon request by Mr. Laybourn and pursuant to support received by Mr. White and Mr. Cook, item #19 was removed from the Consent Agenda. Upon request by Mr. Laybourn and pursuant to support received by Mr. Johnson and Mr. Cook, item #20 was removed from the Consent Agenda. Upon request by Mr. Laybourn and pursuant to support received by Mr. Johnson and Mr. White, item #24(d) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson who didn’t vote due to an employment conflict with an item on Consent Agenda.

[CA] Minutes from Regular Meeting of the Governing Body on June 13, 2022. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB, MUR, LI, and CB to MUB with the UU Overlay for land located in the West Edge District. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Comments were made by the following members of the governing body: Mr. Laybourn. Motion carried. Voting “yes” – all members of the governing body. (#4449)

ORDINANCE – 2nd READING – Amending Unified Development Code Section 1.4.4.f, Industrial Services Uses, to create a definition for Data Center and to amend definitions for clarification and amending Table 5-1, Zoning District Uses, of Unified Development Code Section 5.1.4, Districts and Uses, to classify the Permissibility of Data Center. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Section 9.08.010(B)(3), Disturbance of the Peace and Disturbance of Property, Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming. Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending Section 2.40.020, Appointment of Judges – Powers Generally, of Chapter 2.40, Municipal Court, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE – 1st READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2022 and ending June 30, 2023 (Postponed from June 13, 2022. Motion (per Consent Agenda) carried. (#6245)

[CA] RESOLUTION – Authorizing the creation and appointment of a new Reed Avenue Corridor Steering Committee (Postponed from June 13, 2022). Motion (per Consent Agenda) carried. (#6246)

[CA] RESOLUTION – Authorizing the City of Cheyenne Board of Public Utilities to discharge uncollectible debts in the amount of \$28,499.04 pursuant to Wyo. Stat.§ 16-4-502. Motion (per Consent Agenda) carried. (#6247)

RESOLUTION – Supporting the continuation of the Optional One Percent Sales Tax for calendar years 2023 through 2026 and pledging that all revenues derived from this tax will be used for projects described in this resolution. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Roybal. Mr. White moved to amend by substitute dated June 27, 2022, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. Public comment was made by: Jim Ridgeway and Tim Bradshaw, Cheyenne Regional Airport. Comments were made by the following members of the governing body: Mayor Collins and Mr. Segrave. (#6248)

[CA] RESOLUTION – Approving a Special Use Permit for Oil and Gas Support Services for Lot 1, Block 1, Plains Industrial Park, 2nd Filing, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#6249)

RESOLUTION – Naming the new Community Park, located on the southwest corner of the intersection of E. Pershing Boulevard and Whitney Road, commonly referred as East Cheyenne Community Park to be known as Kiwanis Park. Dr. Rinne moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting “no”. Public comment was made by: Sam Weinstein,

Kiwanis Club President. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Segrave and Dr. Rinne. (#6250)

[CA] RESOLUTION – Providing for partial vacation of the Frontier North Final Plat. Motion (per Consent Agenda) carried. (#6251)

[CA] RESOLUTION – Authorizing the City of Cheyenne Community Recreation and Events Department to apply for a Cheyenne Community Recreation District Recreation Mill Grant to construct a multi-use storage facility at the Cheyenne Junior League Athletic Complex. Motion (per Consent Agenda) carried. (#6252)

RESOLUTION – Authorizing the City of Cheyenne Planning and Development Department to accept a U.S. Environmental Protection Agency Community-Wide Brownfield Assessment Grant to continue development efforts in the West Edge District. Mr. White moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mr. Laybourn. (#6253)

RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of design and right-of-way acquisition for a multi-use path for pedestrians and bicycles from the Sun Valley Open Space into East Cheyenne Community Park. Mr. White moved to adopt, seconded by Mr. Laybourn. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mr. Laybourn. (#6254)

[CA] RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of the construction of two (2) high intensity activated cross walk systems located across Western Hills Boulevard at McCormick Junior High School and across Pershing Boulevard at McCann Avenue – referred to Finance Committee. (Sponsor – Mr. White)

[CA] Contract between the City of Cheyenne and Blue Cross Blue Shield for third party administrator services and for group health insurance benefits for City employees. Motion (per Consent Agenda) carried. (#7535)

[CA] Contract between the City of Cheyenne and Granular Insurance Company for Stop Loss Insurance for City employees. Motion (per Consent Agenda) carried. (#7536)

[CA] Professional Services Agreement between the City of Cheyenne and Brian Quinn for City Prosecutor Legal Counsel Services. Motion (per Consent Agenda) carried (in an amount not to exceed \$46,800.00). (#7537)

[CA] Professional Services Agreement between the City of Cheyenne and Warehouse Twenty One for the Destination Wayfinding Signage Plan, Phase III Fabrication and Installation Services Project (Specific Purpose Sales Tax and Greenway Donations) – referred to Finance Committee.

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) (General Fund) – referred to Finance Committee.

[CA] Parking Lot Lease Agreement between the City of Cheyenne and Riverstone Bank for the lease of parking spaces at 1716 Thomes Avenue (General Fund) – referred to Finance Committee.

[CA] Purchase and sale agreement for real property between Retail Properties C, LLC and the City of Cheyenne for the acquisition of land for a future fire station location (General Fund) – referred to Finance Committee.

[CA] Agreement for the purchase, sale and exchange of lands between the City of Cheyenne and US 30 BP LLC for the acquisition of land for a future fire station location (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Memorandum of Agreement between the City of Cheyenne, Reiman Corporation and AVI, P.C. for removal and replacement of curb ramps within the right-of-way for the Evers Blvd. Reconstruction Project (2019-2022 One Percent Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7151 between the City of Cheyenne and the Wyoming Business Council to extend the construction services completion deadline and agreement expiration date for the FE Warren Enhanced Use Lease Project. Motion (per Consent Agenda) carried. (#7151)

[CA] Contract Modification #1 to Contract #7461 between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and West Edge Collective, LLC, for Public Engagement and Web Support Services (MPO Federal Funds) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7287 between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and Benchmark Engineers, PC, for the Walterscheid Boulevard Reconstruction Plan (MPO Federal Funds) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #6445 between the City of Cheyenne and AVI Professional Corporation for additional design services for the 17th Street Lighting Project (Specific Purpose Sales Tax Overage Funds) – referred to Finance Committee.

[CA] Consideration of Bid #E-28-22 for multiple contracts between the City of Cheyenne and Solid Rock, 119, Inc. d/b/a Top-Flight Maintenance, Inc., for Janitorial Services for multiple City of Cheyenne Facilities (General Fund & Youth Activities Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$112,229.00). (#7538-7541)

[CA] Consideration of Bid #E-29-22 for twenty-four (24) four (4) yard front end load containers and twenty-four (24), eight (8) yard front end load containers for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Wastequip Mfg. Co. LLC, Statesville, NC, in an amount not to exceed \$60,216.00).

[CA] Consideration of Bid #S-14-22 for a contract between the City of Cheyenne and Reiman Corp. for the ADA Ramp Improvements for Evers Boulevard Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$82,680.00). (#7542)

Consideration of Bid #S-16-22 for a contract between the City of Cheyenne and JTL Group Inc. d/b/a Knife River for the Nationway Overlay Phase 1 Project (Specific Purpose Sales Tax). Mr. White moved to approve in an amount not to exceed \$1,688,725.35, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins, Mr. Johnson, Mr. Laybourn and Dr. Rinne. (#7543)

[CA] Consideration of Bid #S-17-22 for a contract between the City of Cheyenne and Casper Electric, Inc. for the Storey Boulevard and Ridge Road Signalized Intersection Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$479,999.84). (#7544)

[CA] Consideration to purchase between the City of Cheyenne and OpenGov Inc., for the purchase of a Software as a Service (SaaS) Solution for budgeting, financial management, procurement, citizen services, reporting, transparency, and asset management (American Rescue Plan Federal Recovery Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$1,471,607.64). (#7545)

[CA] Consideration of Bid #E-30-22 for as-needed emergency snow control for the City of Cheyenne, Public Works Department (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Bar and grill liquor license application filed with the City Clerk’s Office for SAF Compliance LLC d/b/a Paris West Restaurant & Bar, 1719 Central Ave., Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Request to expand seating area for consumption relating to City of Cheyenne microbrewery liquor license held by Freedom’s Edge Brewing Co., located at 1509 Pioneer Avenue, Cheyenne, WY – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Reappointments of Anthony Ortiz to the Cheyenne Downtown Development Authority; Chet Halvorson to the Urban Renewal Authority; and Julie Torres, Danny Glick, and Beth Lance to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Segrave moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Appointments of Chad Dunlay to the Laramie County Community Juvenile Services Joint Powers Board; Darin Westby to the City/County Frontier Park Improvements Joint Powers Board; Meghan Connor to the Planning Commission; and Josh Morris to the Cheyenne-Laramie County Economic Development Joint Powers Board. Mr. Segrave moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments). Comments were made by the following members of the governing body: Mayor Collins and Dr. Rinne.

Announcement was made of a Public Hearing to be held July 11, 2022, at 6:00 P.M. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for proposed Specific Purpose Sales Tax (6th Penny) Projects to be completed in the Downtown Development District. Prior to the public hearing, a work session with the City Council will be held on July 8, 2022, at 12:00 p.m. in City Council Chambers, and via electronic conference meeting, to outline the proposed projects.

Announcement was made that a Calcutta benefitting Cheyenne area charities will be held on Saturday, July 30, 2022 beginning at 5:30 p.m. in the Cowboy Bistro, located beside the Rodeo Committee Cabin at Frontier Park, Cheyenne, WY, in conjunction with the 2022 Cheyenne Frontier Days Rodeo (10% of proceeds go to bona fide charities).

Announcement was made that due to City offices being closed for the Independence Day holiday on July 4, 2022, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meetings as follows: Finance Committee will meet Tuesday, July 5, 2022 at Noon and Public Services Committee will meet Wednesday, July 6, 2022 at Noon.

Public comment was made by Jim Ridgeway.

The following members of the governing body made comments under other business – Mayor Collins, Mr. Johnson, Mr. Laybourn, Mr. Segrave, Mr. White.

Mr. Roybal moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(vii), seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: City Attorney, City Clerk, City Treasurer, Chief of Staff and members of Planning and Development. (Clerk’s Note: executive session convened at 6:57 p.m.)

There being no further business to come before the governing body, the meeting was officially adjourned at 7:13 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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